

The Motion is unopposed, but there is no indication that Defendant ever provided notice of the Motion to Plaintiff.

Disposition

This Motion will be continued to 12/8/26, 9am.

Defendant to provide a copy of the Motion to Plaintiff, and to provide notice of the next hearing.

**6. 9:00 AM CASE NUMBER: L25-03786
CASE NAME: WELLS FARGO BANK, N.A. VS. KEVIN ROA**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Wells Fargo v. Bryan Manuel

Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration of William Haas, a Separate Statement of Undisputed Material Facts and Plaintiff’s Exhibits A through C. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail service on the address provided in Defendant’s Answer.

Background

The Complaint alleges a breach of contract cause of action stemming from a credit card agreement. Plaintiff alleges Defendant stopped making payments on debt he owed, an action that violated the terms of the cardholder agreement.

The final balance of Defendant’s account is alleged to be \$10,277.97.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity

to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the declaration of William Haas, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Haas declared that he was familiar with the record keeping practice of Wells Fargo Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence. In addition, statements about the custom and practice of Wells Fargo, such as their practice of mailing Customer Agreements to consumers, as well as the fact that accounts cannot be used unless cards are activated by the cardholder, are admitted.

Next, the court evaluates whether Plaintiff has made a *prima facie* showing of a Breach of Contract.

The exhibits show a Cardholder Agreement, where the terms, such as making payments for costs incurred, receiving account statements, and the acceptance of the agreement terms by use of the card and account. Ms. Haas also declared that it was the custom and policy of Plaintiff to issue such an agreement whenever a party applies for a credit card.

These exhibits, coupled with the declaration of Ms. Haas, establish a *prima facie* showing for Breach of Contract, and that the balance owed to the Plaintiff is \$10,277.97. There is evidence of an implied contract in that an agreement was mailed to Defendant, and he then, with knowledge of the terms, activated and used the card for purchases. The billing statements reflect that Defendant did not repay

all of the money that was given to him for the purchases.

The burden would normally shift to the Defendant at this point, but the Motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.
2. Plaintiff to prepare the order after hearing.

7. 9:00 AM CASE NUMBER: L25-05652
CASE NAME: HORMOZ REZAIE VS. LAURA RUETTHERS
TO COMPEL PLAINTIFF TO RESPOND TO FORM INTERROGATORIES, SET ONE
FILED BY: RUETTHERS, LAURA JANE
TENTATIVE RULING:

Defendant filed a Motion, on 3/13/26, to compel discovery responses from Plaintiff, along with a request for sanctions, under Sections 2030.290, 2030.210 and 2030.220 of the CCP, and their corresponding statutes with respect to sanctions. Defendant has also filed a Declaration and a Memorandum.

Defendant served the documents on Plaintiff electronically.

Plaintiff filed a Response, on 8/12/26, along with a Declaration ("Plaintiff's Declaration"), on 8/13/26.

Defendant filed a Reply, served electronically.

Background

Defendant claims she served a set of form interrogatories on Plaintiff, ("Set One"), on 9/22/25, but that, to each request, Plaintiff objected and requested more time to respond because of an ailing spouse. The only basis for the objection was the need for a continuance because of this circumstance.

Plaintiff has also, apparently, provided no timeline by which he could provide the discovery responses, despite multiple attempts by the Defendant to meet and confer.

Defendant also alleges that Plaintiff has, simultaneously, been participating in a small claims matter involving the same parties (MSC24-0498A) and in which Plaintiff has submitted hundreds of pages of documents to support his position.

Defendant requests monetary sanctions, arguing that Plaintiff's failure to respond is a misuse of the discovery process.

Defendant's Declaration reflects that Defendant electronically served on Plaintiff's counsel Set One of